

CHAIRMAN



UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C. 20436

November 9, 2006

President
The White House
Washington, DC 20500

Dear Mr. President:

On November 9, 2006, the United States International Trade Commission issued a limited exclusion order and a cease and desist order, pursuant to section 337 of the Tariff Act of 1930 (19 U.S.C. § 1337), in USITC Investigation No. 337-TA-563, *Certain Portable Power Stations and Packaging Therefor*.

The limited exclusion order prohibits importation into the United States of portable power stations and packaging therefor covered by U.S. Design Patent No. D469,730; U.S. Trademark Registration No. 2,594,538; and U.S. Copyright Registration No. VA-1-261-495, that are manufactured abroad or imported by, or on behalf of, Sinochem Ningbo, Ltd., of Ningbo, China, or any of its affiliated companies, parents, subsidiaries, or other related business entities, or their successors or assigns.

The Commission concluded that the statutory public interest factors enumerated in subsection (g)(1) of section 337 of the Tariff Act of 1930, as amended, (19 U.S.C. § 1337(g)(1)) do not preclude the issuance of this remedy. The Commission also determined that the excluded portable power stations may be imported and sold in the United States during the Presidential review period under a bond in the amount of 100 percent of the entered value of such portable power stations.

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In accordance with subsection (j) of section 337 of the Tariff Act of 1930 (19 U.S.C. § 1337(j)) and your July 21, 2005, Memorandum for the United States Trade Representative (70 *Fed. Reg.* 43251), I am transmitting to you and to the United States Trade Representative copies of the Commission's order and opinion and the record upon which it based its determinations.

Sincerely,

Daniel R. Pearson / KD
Daniel R. Pearson

Enclosures

UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C.

In the Matter of

**CERTAIN PORTABLE POWER
STATIONS AND PACKAGING
THEREFOR**

Inv. No. 337-TA-563

LIMITED EXCLUSION ORDER

The Commission instituted this investigation on March 14, 2006, based on a complaint filed by Roadmaster (USA) Corp. of Eatontown, New Jersey. 71 *Fed. Reg.* 13166 (March 14, 2006). The complaint, as supplemented, alleges violations of section 337 of the Tariff Act of 1930, as amended, in the importation into the United States, sale for importation, and sale within the United States after importation of certain portable power stations and packaging therefor by reason of: (1) infringement of U.S. Design Patent No. D469,739 ("the '739 patent"); (2) infringement of U.S. Trademark Registration No. 2,594,538 ("the '538 mark"); and (3) infringement of U.S. Copyright Registration No. VA-1-261-495 ("the '495 copyright"). The complaint further alleges the existence of a domestic industry. The Commission's notice of investigation names Sinochem Ningbo, Ltd. ("Sinochem"), of Ningbo, China, as the respondent.

The presiding administrative law judge (“ALJ”) issued an initial determination on July 12, 2006, finding the respondent in default, because the respondent did not reply to the complaint or notice of investigation, and because the respondent did not reply to a show cause order issued by the ALJ on May 24, 2006. The Commission declined to review the ALJ’s determination that respondent Sinochem, the only respondent named in the investigation, defaulted. Roadmaster seeks relief limited to Sinochem. Since all of the requirements of 19 U.S.C. § 1337(g)(1) are satisfied, the Commission may presume that the facts alleged in the complaint are true and issue an exclusion from entry order and/or a cease and desist order.

Having reviewed the record in this investigation, including the written submissions of the parties, the Commission has made its determination on the issues of remedy, the public interest, and bonding. The Commission has determined that the appropriate form of relief is a limited exclusion order prohibiting the unlicensed entry of infringing portable power stations and packaging therefor that are covered by one or more of the ‘739 patent, the ‘538 mark, and the ‘495 copyright, and that are manufactured abroad by or on behalf of, or imported by or on behalf of, Sinochem. The Commission has also determined that the public interest factors enumerated in 19 U.S.C. § 1337(g)(1) do not preclude issuance of the limited exclusion order, and that the bond during the Presidential review period shall be in the amount of 100% of the entered value

of the portable power stations and packaging therefor that are subject to this Order.

Accordingly, the Commission hereby **ORDERS** that:

1. Portable power stations and packaging therefor that infringe one or more of the '739 patent, the '538 mark, and the '495 copyright,¹ that are manufactured abroad and/or imported by or on behalf of Sinochem, or any of its affiliated companies, parents, subsidiaries, or other related business entities, or their successors or assigns, shall be excluded from entry for consumption into the United States, entry for consumption from a foreign-trade zone, or withdrawal from a warehouse for consumption, for the remaining term of the patent and copyright, or until such date as the trademark is abandoned, canceled, or rendered invalid or unenforceable, except under license of the patent, copyright or trademark owner or as provided by law.

2. Products that are excluded by paragraph 1 of this Order are entitled to entry for consumption into the United States, entry for consumption from a foreign-trade zone, or withdrawal from a warehouse for consumption, under bond in the amount of 100% of the entered value pursuant to subsection (j) of section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337(j), from the day after this Order is received by the United States Trade Representative as delegated by

¹ Copies of the registered design patent, trademark, and copyright are attached hereto.

the President, 70 *Fed. Reg.* 43251 (July 21, 2005), and until such time as the United States Trade Representative notifies the Commission that this action is approved or disapproved but, in any event, not later than sixty (60) days after the date of receipt of this action.

3. In accordance with 19 U.S.C. § 1337(l), the provisions of this Order shall not apply to portable power stations and packaging therefor that are imported by and for the use of the United States, or imported for, and to be used for, the United States with the authorization or consent of the Government.

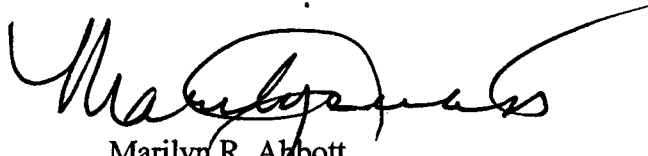
4. Complainant Roadmaster shall file a written statement with the Commission, made under oath, each year on the anniversary of the issuance of this Order stating whether they continue to use the aforesaid trademark in the United States in connection with portable power stations and packaging therefor and whether the aforesaid trademark has been abandoned, canceled, or rendered invalid or unenforceable.

5. The Commission may modify this Order in accordance with the procedures described in Rule 210.76 of the Commission's Rules of Practice and Procedure, 19 C.F.R. § 210.76.

6. The Secretary shall serve copies of this Order upon each party of record in this investigation and upon the Department of Health and Human Services, the Department of Justice, the Federal Trade Commission, and U.S. Customs and Border Protection.

7. Notice of this Order shall be published in the *Federal Register*.

By Order of the Commission.



Marilyn R. Abbott
Secretary

Issued: November 9, 2006

UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C.

In the Matter of

**CERTAIN PORTABLE POWER
STATIONS AND PACKAGING
THEREFOR**

Investigation No. 337-TA-563

**ISSUANCE OF A LIMITED EXCLUSION ORDER AGAINST RESPONDENT FOUND
IN DEFAULT; TERMINATION OF INVESTIGATION**

AGENCY: U.S. International Trade Commission.

ACTION: Notice.

SUMMARY: Notice is hereby given that the U.S. International Trade Commission has issued a limited exclusion order against the respondent found in default in the above-captioned investigation and has terminated the investigation.

FOR FURTHER INFORMATION CONTACT: Clint Gerdine, Esq., Office of the General Counsel, U.S. International Trade Commission, 500 E Street, S.W., Washington, D.C. 20436, telephone (202) 708-5468. Copies of non-confidential documents filed in connection with this investigation are or will be available for inspection during official business hours (8:45 a.m. to 5:15 p.m.) in the Office of the Secretary, U.S. International Trade Commission, 500 E Street, S.W., Washington, D.C. 20436, telephone (202) 205-2000. General information concerning the Commission may also be obtained by accessing its Internet server at <http://www.usitc.gov>. The public record for this investigation may be viewed on the Commission's electronic docket (EDIS) at <http://edis.usitc.gov>. Hearing-impaired persons are advised that information on this matter can be obtained by contacting the Commission's TDD terminal on (202) 205-1810.

SUPPLEMENTARY INFORMATION: The Commission instituted this investigation on March 14, 2006, based on a complaint filed by Roadmaster (USA) Corporation ("Roadmaster") of Eatontown, New Jersey. The complaint, as amended and supplemented, alleges violations of section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, in the importation into the United States, the sale for importation, and the sale within the United States after importation of certain portable power stations and packaging therefor by reason of infringement of U.S. Design Patent No. D469,730; U.S. Trademark Registration No. 2,594,538; and U.S. Copyright Registration No. VA-1-261-495. The complaint further alleges the existence of a domestic

industry. The Commission's notice of investigation names Sinochem Ningbo, Ltd. ("Sinochem"), of Ningbo, China, as the only respondent.

The administrative law judge ("ALJ") issued an initial determination on July 12, 2006, finding Sinochem in default, because the respondent failed to reply to the complaint or notice of investigation, and also failed to reply to a show cause order issued by the ALJ on May 24, 2006. The Commission declined to review the ALJ's determination that the respondent Sinochem defaulted.

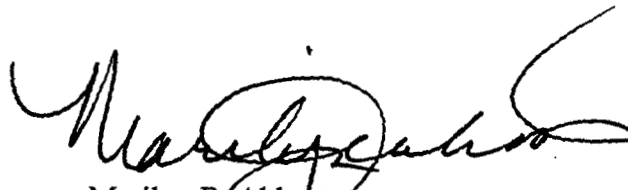
On August 23, 2006, the Commission issued a notice requesting briefing on the issues of remedy, the public interest, and bonding relating to the default finding of unlawful importation and sale of infringing products by Sinochem. 71 *Fed. Reg.* 51210 (Aug. 29, 2006). Complainant submitted a brief along with a proposed order on September 5, 2006. The Commission investigative attorney ("IA") also submitted a brief along with a proposed order on September 6, 2006, and further submitted a reply brief on September 13, 2006. The Complainant chose not to file a reply brief.

Having examined the record of this investigation, including the submissions of the parties, the Commission has determined that each of the statutory requirements of section 337(g)(1), 19 U.S.C. § 1337(g)(1), has been met with respect to defaulting respondent Sinochem. Accordingly, pursuant to section 337(g)(1), 19 U.S.C. § 1337(g)(1) and Commission Rule 210.16(c), 19 C.F.R. § 210.16(c), the Commission presumed the facts alleged in the complaint to be true. The Commission determined that the appropriate form of relief in this investigation is a limited exclusion order prohibiting the unlicensed entry of portable power stations and packaging therefor covered by U.S. Design Patent No. D469,739; U.S. Trademark Registration No. 2,594,538; or U.S. Copyright Registration No. VA-1-261-495 that are manufactured abroad by or on behalf of, or imported by or on behalf of, Sinochem or any of its affiliated companies, parents, subsidiaries, or other related business entities, or their successors or assigns.

The Commission further determined that the public interest factors enumerated in section 337(g)(1), 19 U.S.C. § 1337(g)(1), do not preclude issuance of the limited exclusion order. Finally, the Commission determined that the amount of bond to permit temporary importation during the Presidential review period, under 19 U.S.C. § 1337(j), shall be in the amount of 100 percent of the entered value of the infringing imported portable power stations and packaging therefor. The Commission's order was delivered to the President and the United States Trade Representative on the day of its issuance.

The authority for the Commission's determination is contained in section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, and in section 210.16(c) of the Commission's Rules of Practice and Procedure, 19 C.F.R. § 210.16©.

By order of the Commission.



Marilyn R. Abbott
Secretary to the Commission

Issued: November 9, 2006

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

CERTAIN PORTABLE POWER STATIONS AND
PACKAGING THEREFOR

Inv. No. 337-TA-563

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ORDER NO. 5: INITIAL DETERMINATION FINDING RESPONDENT SINOCHEN
NINGBO LTD. IN DEFAULT

(July 12, 2006)

On May 9, 2006, Complainant Roadmaster (USA) Inc. ("Roadmaster") moved [563-01] for an order directing Respondent Sinochem Ningbo LTD ("Sinochem") to show cause why it should not be found in default for failing to respond to the Complaint¹ and Notice of Investigation². Roadmaster's motion further requested issuance of an initial determination finding Sinochem in default upon failure to show cause. In addition, Roadmaster's motion included a request for immediate entry of a general exclusion order, limited exclusion order, cease and desist order, and/or other appropriate relief upon finding Sinochem in default. On May 22, 2006, the Commission Investigative Staff ("Staff") filed a response supporting Roadmaster's motion, and took no position with respect to Roadmaster's request for immediate entry of relief upon finding of default by Sinochem. No other responses to Roadmaster's motion were filed.

Order No. 4, issued on May 24, 2006, granted Roadmaster's motion ordering Sinochem to show, by the close of business on June 13, 2006, why it should not be found in default for failure to

¹ Roadmaster filed a complaint with the Commission pursuant to Section 337 of the Tariff Act of 1930 on February 8, 2006, and supplemented its Complaint on February 27, 2006.

² The Notice of Investigation, issued by the Commission, was published in the Federal Register as 71 Fed. Reg. 13,166 on March 14, 2006.

respond to the Complaint and Notice of Investigation pursuant to Rule 210.16 of the Commission's Rules of Practice and Procedure, 19 C.F.R. § 210.16. No responses to Order No. 4 were filed by the deadline date, and no responses have been filed as of the present date.

Commission Rule 210.16 provides in pertinent part, as follows:

A party shall be found in default if it fails to respond to the complaint and notice of investigation in the manner prescribed in §210.13 or § 210.59(c), or otherwise fails to answer the complaint and notice, and fails to show cause why it should not be found in default.

19 C.F.R. § 210.16(a)(1). The Commission's Rules further provide that "[a] party found in default shall be deemed to have waived its right to appear, to be served with documents, and to contest the allegations at issue in the investigation." 19 C.F.R. § 210.16(b)(3).

Accordingly, it is the INITIAL DETERMINATION of the Administrative Law Judge that Respondent Sinochem is found to be in default. Consequently, Sinochem has waived its rights to appear, to be served with documents, and to contest the allegations at issue in the investigation.

Pursuant to 19 C.F.R. § 210.42(h), this initial determination shall become the determination of the Commission unless a party files a petition for review of the initial determination pursuant to 19 C.F.R. § 210.43(a), or the Commission, pursuant to 19 C.F.R. § 210.44, orders on its own motion a review of the initial determination or certain issues contained herein.

SO ORDERED.

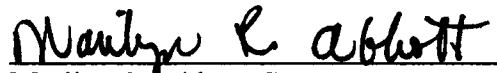

Charles E. Bullock
Administrative Law Judge

**IN THE MATTER OF CERTAIN PORTABLE POWER
STATIONS AND PACKAGING THEREFOR**

337-TA-563

CERTIFICATE OF SERVICE

I, Marilyn R. Abbott, hereby certify that the attached **ORDER** was served upon, **David O. Lloyd, Esq.**, Commission Investigative Attorney, and the following parties via first class mail and air mail where necessary on July 13, 2006.



Marilyn R. Abbott, Secretary
U.S. International Trade Commission
500 E Street, S.W., Room 112A
Washington, DC 20436

FOR COMPLAINANT ROADMASTER (USA) CORP:

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Robert F. Zielinski, Esq.
Charles M. Hart, Esq.
WOLF, BLOCK, SCHORR AND SOLIS-COHEN LLP
1650 Arch Street
22nd Floor
Philadelphia, PA 19103

RESPONDENT:

SINOCHEM NINGBO, LTD
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Ningbo 315000 China

**IN THE MATTER OF CERTAIN PORTABLE POWER
STATIONS AND PACKAGING THEREFOR**

337-TA-563

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